

Amendment No. 1 to SB2188

White
Signature of Sponsor

AMEND Senate Bill No. 2188*

House Bill No. 2388

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-3-315, is amended by deleting "All school funds" in subsection (a) and substituting "Except as provided in subsection (d), all school funds" and by adding the following as a new subsection:

(d)

(1) As used in this subsection (d):

(A) "County" means a county that:

(i) Operates a county school system;

(ii) Has five (5) or more special school districts operating within its geographic boundaries; and

(iii) Has at least one (1) special school district operating within its geographic boundaries that has established a virtual school pursuant to the Virtual Public Schools Act, compiled in chapter 16, part 2 of this title; and

(B) "WFTEADA" means one (1) full-time equivalent average daily attendance, excluding virtual school students who do not reside in the county, multiplied by the cost differential for a program.

(2) All school funds for current operation and maintenance purposes collected by a county, except the funds raised by any local special student transportation tax levy as authorized in subsection (a), must be apportioned by

the county trustee among the LEAs in the county on the basis of the WFTEADA maintained by each, during the current school year.

(3) For purposes of making the apportionment of local school funds as set forth in this subsection (d), and in defining the WFTEADA for the current school year, the county director of schools and the county trustee must be guided by the same procedure in subdivisions (a)(1)-(5); provided, that the terms defined in this subsection (d) apply to the use of such terms in subdivisions (a)(1)-(5) for purposes of making apportionments pursuant to this subsection (d).

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.